

Tentative Rulings
September 16, 2024
Department 44
2:30 p.m.

*****The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website). *****

CONSERVATORSHIPS
CONSERVATORSHIP OF LOGAN GIBSON
Case Number: 24PC-0032456

This matter is on calendar to confirm filing of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, and Determination of Appropriate Level of Care Form. All documents have been filed and are accepted by the Court. The Court confirms the future date of July 14, 2025, for Annual Review. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF ARGENT HALE
Case Number: 23PC-0032036

This matter is on calendar for Annual Review. The Court has not yet received the Court Investigator's Report. This matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44.** **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JAMES JONES
Case Number: CVPG19-0030121

This matter is on calendar for Biennial Review. The Court has not yet received the Court Investigator's Report. This matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44.** **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN MCKENZIE
Case Number: CVPG92-0019491

This matter is on calendar to confirm the filing of Receipts and Petition for Final Discharge. No Receipts have been filed. No Petition for Final Discharge is on file. A Status Report has been filed which requests additional time to file the documentation. The matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF PETER MITCHELL

Case Number: 24PC-0032302

This matter is on calendar to confirm filing of the Final Inventory and Appraisal. A Partial Inventory and Appraisal No. 2 was filed on August 29, 2024. No Final Inventory and Appraisal has been filed. A Status Report and Petition for Increase of Bond has been filed and is set for hearing on October 7, 2024. That date is confirmed. Today's hearing has been VACATED. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF DANIEL MOSIER

Case Number: 23PC-0032093

This matter is on calendar for further proceedings regarding the Status of Accounting. No Accounting has been filed. A Status Report has been filed, which requests that the matter be continued to be heard concurrently with a motion to be relieved as counsel. The matter is continued to **Monday, October 14, 2024, at 2:30 p.m. in Department 44** for status of accounting. **No appearance is necessary on today's calendar.**

This matter is also on calendar for further proceedings on a Petition for Appointment of Conservator of the Person and Estate. The matter has been properly noticed, with proof of service on file. There is proof of service of the Citation. Counsel has been appointed for the Conservatee. A Capacity Declaration has been filed. No objections have been raised. The Court has reviewed the Court Investigator's Report, filed September 4, 2024, which recommends granting the Petition. The report states that the Conservatee will attend the hearing. The Court Investigator further notes that the Conservatee cannot communicate, with or without reasonable accommodations, a desire to participate in the voting process. Absent an appearance and objection by Counsel for the proposed Conservatee, the Petition is **GRANTED**. The Court finds that the Conservatee cannot communicate, with or without reasonable accommodations, a desire to participate in the voting process and is therefore disqualified from voting. **The clerk is directed to forward the Court's order and voting determination to the Secretary of State and the county elections official in the format prescribed by the Secretary of State.** A proposed order was submitted and will be executed by the Court. The matter is set for **Monday, December 30, 2024, at 2:30 p.m. in Department 44** for confirmation of filing of the Conservatorship Care Plan, Determination of Appropriate Level of Care Form, proof of service of the Notice of Conservatee's rights, and Inventory and Appraisal. The matter is set for **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**

CONSERVATORSHIP OF MICHAEL OGIER

Case Number: CVPG14-0027875

This matter is on calendar for hearing on the Eleventh Account and Report of Conservator and Trustee, Petition for Sufficiency of Bond and Approval of Compensation. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears in order. The Petition is **GRANTED**. A proposed order was lodged with the Court and will be executed. The clerk is instructed to return the original lodged documents to Counsel. This matter is set for **Monday, April 13, 2026, at 2:30 p.m. in Department 44** for hearing on the Twelfth Account. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF PAIGE PENDLETON

Case Number: 24PC-0032481

This matter is on calendar for further proceedings on a Petition for Appointment of a Conservator of the Person. Multiple defects were previously raised by the Court on July 15, 2024, and the Petitioner ordered to file an Amended Petition, timely file and serve a new Notice of Hearing and to have a new Citation issued and served. No Amended Petition has been filed. No Notice of Hearing has been filed. No new Citation has been issued. This matter is continued to **Monday, November 25, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall file an Amended Petition which corrects the defects previously noted. Petitioner shall also have a Citation issued and timely served for the continued hearing date. Finally, Petitioner shall file and timely serve a new Notice of Hearing along with the Amended Petition for the continued hearing date. The clerk is instructed to mail a copy of today's minute order to the Petitioner. A failure to correct the defects by the next hearing date may result in the denial of the Petition. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN ROCHA

Case Number: 24PC-0032552

This matter is on calendar for confirmation of counsel and further proceedings on the Petition for Appointment of Conservator. An Amended Petition has been filed and noticed for hearing on September 30, 2024. The Court confirms the future hearing date of September 30, 2024. This matter is continued to **Monday, September 30, 2024, at 2:30 p.m. in Department 44** for confirmation of counsel. The clerk is instructed to provide a copy of today's minute order and the August 19, 2024, minute order to the Public Defender. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF DOLORES WINDUST

Case Number: 24PC-0032549

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person and Estate. The matter has been properly noticed, with proof of service on file. The Citation has been filed with proper proof of service. Counsel has been appointed for the Conservatee. No objections have been raised. The Court has reviewed the Court Investigator's report, filed September 5, 2024, which recommends granting the Petition. The report states that the Conservatee will attend the hearing and wishes to contest the establishment of the Conservatorship. The Court Investigator further notes that the Conservatee cannot communicate, with or without reasonable accommodations, a desire to participate in the voting process. Absent an appearance and objection by Counsel for the proposed Conservatee, the Petition is **GRANTED**. The Court finds that the Conservatee cannot communicate, with or without reasonable accommodations, a desire to participate in the voting process and is therefore disqualified from voting. **The clerk is directed to forward the Court's order and voting determination to the Secretary of State and the county elections official in the format prescribed by the Secretary of State.** A proposed order was submitted and will be executed by the Court. The matter is set for **Monday, December 30, at 2:30 p.m. in Department 44** for confirmation of filing of the Conservatorship Care Plan, Determination of Appropriate Level of Care Form, proof of service of the Notice of Conservatee's Rights and Inventory and Appraisal. The matter is set for **Monday, September 15, 2024, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**

ESTATES

ESTATE OF DEBRALEE ANDREWS

Case Number: CVPB21-0030934

This matter is on calendar for further proceedings on the First and Final Account and Report and Petition for Distribution. The Court previously ordered the filing of an Amended Petition or Supplement to the prior Petition to address the defects identified in the April 24, 2023, minute order. No Amended Petition or Supplement has been filed. No Status Report has been filed as ordered by the Court on July 22, 2024. The matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for further proceedings on the First and Final Account and Report and Petition for Distribution. An Amended Petition or Supplement to the original Petition is required addressing the defects identified in the Court's April 24, 2023, order. If the documents cannot be filed prior to the next hearing date, the Court **AGAIN ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF PATRICK ARMITAGE

Case Number: 22PB-0031761

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, March 17, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF DAVID ARMSTRONG

Case Number: 23PB-0032221

This matter is on calendar for further proceedings to confirm filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. A Status Report has been filed which indicates that additional time is needed to file the Inventory and Appraisal. This matter is continued to **Monday, December 9, 2024, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of December 9, 2024, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF MARY AULD

Case Number: 23PB-0032084

This matter is on calendar for Status of Administration. The court notes that future hearing dates were set on August 26, 2024, and Today's hearing date should have been vacated at that time. The Court confirms the future hearing date of January 6, 2025, for confirmation of filing of the Inventory and Appraisal and September 8, 2025, for Status of Administration. Today's hearing has been **VACATED**. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA BARNETT

Case Number: 23PB-0031940

This matter is on calendar to confirm the filing of Receipts and Petition for Final Discharge. No Receipts have been filed. No Petition for Final Discharge is on file. A status report has been filed, which indicates additional time is needed before the final receipt and Petition for Discharge can be submitted. The matter is continued to **Monday, March 17, 2025, at 2:30 p.m. in Department 44** for further proceedings to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF ELAINE BLAKESLEY

Case Number: 24PB-0032557

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has not been properly noticed. The proof of service of the Notice of Petition fails to provide the date of mailing. In addition, the signature of person completing the form was undated. Proof of proper publication has been filed. No objections have been raised. This matter is continued to **Monday, October 14, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall file and timely serve a new Notice of Petition for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF JOSEPH BOLDUC

Case Number: 23PB-0031944

This matter is on calendar for further proceedings to confirm the filing of Receipts and Petition for Final Discharge. Not all receipts have been filed. No Petition for Final Discharge is on file. A Status Report has been filed which requests additional time to obtain the final Receipt. The matter is continued to **Monday, January 13, 2025, at 2:30 p.m. in Department 44** to confirm filing of the remaining Receipt and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF VICKI BROWER

Case Number: 23PB-0032243

This matter is on calendar for hearing on a Petition for Final Distribution on Waiver of Accounting and for Allowance of Compensation. An Amended Petition for Final Distribution has been filed and noticed

for hearing on September 23, 2024. That date is confirmed. Today's hearing has been **VACATED. No appearance is necessary on today's calendar.**

ESTATE OF RUSSELL BUHAY

Case Number: 22PB-0031616

This matter is on calendar for hearing on the First and Final Account and Report of Executor and Petition for Final Distribution and Allowance of Attorney's Fees. The matter has been properly noticed, with proof of service on file. The Petition fails to indicate whether notice was provided to the Franchise Tax Board as required by Probate Code § 9202(c). It also incorrectly calculates counsel's compensation. Receipts are incorrect, as they improperly include a loan of \$3000.15 to the estate. This is not an income receipt, as it does not increase the value of the estate. Receipts are \$18,933.31. The calculation of statutory compensation fails to take into account the losses totaling \$27,958.25. The statutory compensation is \$8,693.73. The Court also notes that there is a disbursement of \$900 for attorney's fees that is not explained. This matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for further proceedings on the First and Final Account. Petitioner shall file an Amended First and Final Account that addresses the above issues. Petitioner shall also file and timely serve a new notice of hearing for the continued hearing date. Finally, Petitioner shall submit a new proposed order. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES CALLAHAN

Case Number: 24PB-0032410

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Partial Inventory and Appraisal filed on August 12, 2024, is accepted by the Court. A Status Report has been filed requesting additional time to file the Final Inventory and Appraisal. The matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for confirmation of the filing of the Final Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of May 12, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF FRANKLIN CIBULA

Case Number: CVPB08-0025945

This matter is on calendar for further proceedings on Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF JOSEPHINE CLINE

Case Number: CVPB17-0029336

This matter is on calendar for status of administration. A properly noticed Status Report has been filed. The Status Report provides the real property is for sale but fail to identify if there has been any interest in the property or when the Personal Representative believes the Estate will be in a position to close. The matter is set for **Monday, November 4, 2024, at 2:30 p.m. in Department 44** for further proceedings on Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court ORDERS the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF CANDACE COLLINS

Case Number: CVPB20-0030822

This matter is on calendar for further proceedings on the Motion to Vacate the Court's Prior Order dated June 27, 2022, and for Status of Family Court Proceedings. The Court was previously informed a pending motion in another department could make an estate proceeding unnecessary. No Status Report has been filed. No documentation has been filed to establish the property issue has been addressed in the family law case. **An appearance is necessary on today's calendar to provide the Court with a status.**

ESTATE OF ROY COOKSEY

Case Number: CVPB22-0031441

This matter is on calendar for further proceedings on the Petition for Final Distribution and Status of Administration. No Amended Account and Report and Petition for Final Distribution has been filed. No Status Report has been filed as ordered by the Court on July 1, 2024. **An appearance is necessary on today's calendar to provide the Court with a status of the Amended Account and Petition for Final Distribution.**

ESTATE OF DALE COUTTS

Case Number: 23PB-0032128

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, October 21, 2024, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court ORDERS the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA DIESSLIN

Case Number: 24PB-0032594

This matter is on calendar for hearing on a Petition for Probate of Will. The matter does not appear to be properly noticed. Petitioner is required to list in item 8 all persons mentioned in the will, and provide them with notice. Ned Sturm is identified in the will, but is not identified in Item 8, and was not included on the proof of service. In addition, Petitioner fails to state her relationship to the decedent in item 8. Proof of publication has been filed. Proof of Holographic Instrument has been filed. The matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner is required to file an amended Petition that addresses the above defects, and timely serve Notice for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF CATHY ELLIOTT

Case Number: 24PB-0032353

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. However, the personal representative has filed a Status Report indicating that additional time is needed before the Final Inventory and Appraisal can be filed. This matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future court date of May 5, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF JULIE EMERY

Case Number: 24PB-0032605

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. The original proof of publication has not been filed. No objections have been raised. This matter is continued to **Monday, October 21, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. Petitioner shall file the original proof of publication at least five days prior to the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF VICTORIA FERRASCI

Case Number: 24PB-0032386

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Partial Inventory and Appraisal was filed on September 5, 2024, and is accepted by the Court. The matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for confirmation of the filing of the Final Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes

the future date of May 12, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF MARGARET FIELDS

Case Number: 24PB-0032615

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. No original proof of publication has not been filed. The heirs have waived the bond requirement. No objections have been raised. This matter is continued to **Monday, October 21, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. Petitioner shall file timely the original proof of publication at least five days prior to the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF HEATHER FOSTER

Case Number: 23PB-0032070

This matter is on calendar today to confirm the filing of Receipts and Petition for Final Discharge. All Receipts have been filed. However, there is no Petition for Final Discharge on file. The matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44** to confirm filing of the Petition for Final Discharge. If a Petition for Final Discharge cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the Petition for Final Discharge can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF JEANNETTE FOX

Case Number: 23PB-0032012

This matter is on calendar for further proceedings to confirm the filing of Receipts and Petition for Final Discharge. No Receipts have been filed. No Petition for Final Discharge is on file. A Status Report has been filed which requests additional time to file the documentation. The matter is continued to **Monday, April 21, 2025, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF CARL GOSLOVICH

Case Number: 24PB-0032606

This matter is on calendar for hearing on a Petition to Determine Succession to Real Property. The matter has not been properly noticed. The Petition identifies Milton Chaffey as an alternate executor, but he was not provided notice. The original will has not been lodged. No objections have been raised. This matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall file and timely serve a new Notice of Hearing on Petition to Determine Claim along with a copy of the Petition for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF BETTY GROTON

Case Number: 24PB-0032384

This matter is on calendar for hearing on the Second Amended Petition for Probate of Will and Letters of Administration. The Court notes the following defects:

1. The Petition checks multiple incorrect boxes on the front page. The Court deems this to be a Petition for probate of will, and for appointment of an administrator with will annexed.
2. The Petition fails to attach a copy of the holographic will. The Petition attaches a typed copy of the holographic will, but both a copy of the holographic will and a typed copy are required. Probate Code Section 8002(b)(1).
3. Disclaimers have been filed by Allison Groton and Steven Groton. The legal effect of the disclaimer is that these two heirs are deemed to have pre-deceased the decedent. Item 8 of the Petition must now identify the individuals that are the intestate heirs of Allison and Steven. The intestate heirs of Allison and Steven would be entitled to notice.
4. The Court found the previous proof of publication to be defective, in that it failed to advise that Petitioner was seeking to probate a will, and the court ordered a new publication. No new proof of publication has been filed.

This matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. An amended Petition must be filed that addresses the above defects. A Notice of Petition must be filed and timely served on all individuals entitled to notice for the continued hearing date. The matter must be republished with the required language. The clerk is instructed to mail a copy of today's minute order to the Petitioner if she does not appear. **No appearance is necessary on today's calendar.**

ESTATE OF KAREN HARVILLE

Case Number: 24PB-0032365

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Final Inventory and Appraisal filed on July 30, 2024, is accepted by the Court. The Court notes the future court date of May 5, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF MORGAN HARVIN

Case Number: 24PB-0032458

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception of the proof of publication. The proof of publication filed on August 26, 2024, fails to provide all the required information contained in the Notice of Petition. It appears that the publication was modified either by the Petitioner or the newspapers to omit key allegations of the Notice of Petition. The matter will need to be republished. The matter is continued to **Monday, November 25, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Proper proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF JANICE HORVAT

Case Number: 23PB-0032190

This matter is on calendar for hearing on the First and Final Report of Executor on Waiver of Account and Petition for Final Distribution and Compensation. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed order has been submitted and will be executed by the Court. This matter is set for **Monday, November 25, 2024, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF RUSSELL HUNT

Case Number: CVPB22-0031446

This matter is on calendar for further proceedings on Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, March 17, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the March 17, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF JOHN THOMAS JOHNSON

Case Number: 24PB-0032590

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has not been properly noticed. The proof of service attached to the Notice of Petition is incomplete and unsigned and fails to establish service on any of the required parties. Proof of proper publication has been filed. No objections have been raised. No proposed Letters have been submitted. This matter is continued to **Monday, October 14, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall file and timely serve an Amended Notice of Petition for the continued hearing date. Petitioner shall submit proposed Letters prior to the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF JOHN MICHAEL JOHNSON

Case Number: 24PB-0032568

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. No proposed Letters were submitted. The Court intends on issuing the Letters without a bond. Petitioner is **ORDERED** to deposit any proceeds from the proposed settlement in a blocked account or in the alternative to set the bond by an ex parte application. The matter is set for **Monday, October 14, 2024, at 2:30 p.m. in Department 44** for confirmation of lodging of proposed Letters. The matter is set for **Monday, January 27, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for

Monday, September 9, 2025, at 2:30 p.m. in Department 44 for Status of Administration. The personal representative is **ORDERED** to comply with Probate Code section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF JEFFREY KUYKENDALL

Case Number: 24PB-0032500

This matter is on calendar for further proceedings on Petition for Letters of Administration. At the prior hearing on July 29, 2024, the Court noted multiple defects in the Petition. The matter was continued to today's date and the Petitioner ordered to file an Amended Petition, an Amended Notice of Petition, new bond waivers and the Duties and Liabilities. None of the required documents have been filed. This matter is continued to **Monday, November 25, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. The clerk is instructed to mail a copy of the July 29, 2024, minute order and a copy of today's minute order to the Petitioner. Petitioner shall correct the defects noted in the July 29, 2024, minutes. A failure to correct the defects by the continued hearing date will result in the denial of the Petition. **No appearance is necessary on today's calendar.**

ESTATE OF MICHAEL MATOUS

Case Number: 23PB-0032108

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the November 18, 2024, date. The clerk is instructed to mail a copy of today's minute order to the Personal Representative. **No appearance is necessary on today's calendar.**

ESTATE OF JUDITH MAUZEY

Case Number: 24PB-0032596

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The matter is set for **Monday, January 27, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for Status of Administration. The personal representative is **ORDERED** to comply with Probate Code section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF ROBERT MCCAFFREY

Case Number: 24PB-0032540

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order with the exception of the request to

set the bond at \$20,000. The estimated value of the estate is \$600,000 and therefore the bond is set in that amount. The Petition is **GRANTED**. No proposed Order was lodged with the Court. Letters will issue upon confirmation of issuance of a bond in the amount of \$600,000.00. The matter is set for **Monday, October 21, 2024, at 2:30 p.m. in Department 44** for confirmation of lodging and execution of order. The matter is set for **Monday, January 27, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for Status of Administration. The personal representative is **ORDERED** to comply with Probate Code section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF LORIN NEEL

Case Number: 23PB-0032182

This matter is on calendar status of increased bond. An amended order increasing the bond issued on September 12, 2024. Today's hearing has been **VACATED**. **No appearance is necessary on today's calendar.**

ESTATE OF BARBARA NOEL

Case Number: 22PB-0031699

This matter is on calendar for further proceedings on Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. Counsel has filed a motion to be relieved as counsel, which is set for hearing on October 14, 2024. This matter is continued to **Monday, October 14, 2024, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the October 14, 2024, date. **No appearance is necessary on today's calendar.**

ESTATE OF WESLEY PHILLIPS

Case Number: 22PB-0031702

This matter is on calendar for hearing on the Petition for Order Directing Return of Possession of Real and Personal Property. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears in order. The Petition is **GRANTED**. A proposed order was lodged with the Court and will be executed. **No appearance is necessary on today's calendar.**

ESTATE OF JERRY REID

Case Number: 22PB-0031675

This matter is on calendar for Status of Administration. A Status Report has been filed and timely noticed. The Status Report requests additional time to address the Petition for Final distribution. The matter is set for **Monday, November 4, 2024, at 2:30 p.m. in Department 44** for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF LOUIS SCHJOTH

Case Number: 24PB-0032584

This matter is on calendar for hearing on a Petition for Probate of Lost Will. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. The Petitioner has established that the original will has been lost; therefore, a photocopy of the will is admitted to probate. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. No bond is required by the will, and letters shall issue. The matter is set for **Monday, January 27, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, September 22, 2024, at 2:30 p.m. in Department 44** for Status of Administration. The personal representative is **ORDERED** to comply with Probate Code section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF LONNIE SLACK

Case Number: 24PB-0032461

This matter is on calendar for hearing on a Petition filed by Jerri Slack. The caption states that it is an amended petition; however, it is Jerri Slack's first filing, so it is simply a Petition, not an amended Petition. The caption of the Amended Petition provides it is for "Probate of Will and For Letters of Administration with Will Annexed" and for "Letters of Administration. Based on the contents of the Petition, the Court deems the Petition to be one for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of publication has been filed but it is defective, in that it provides the incorrect case number. An objection has been filed.

This matter is also on calendar for hearing on an amended Petition for Letters of Administration filed by Jeff Slack which seeks appointment of Crystal Coates. The matter has been properly noticed with proof of service on file. Proper proof of publication has been filed. No Duties and Liabilities form has been filed by Crystal Coates. Nothing has been filed indicating Crystal Coates is agreeing to serve as administrator. An objection has been filed.

An appearance is necessary on today's calendar to discuss the Petitions.

ESTATE OF RODNEY TAI

Case Number: 24PB-0032357

This matter is on calendar for hearing on a Petition for Final Distribution on Waiver of Accounting. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed order has been submitted and will be executed by the Court. This matter is set for **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF DAVID TIDWELL

Case Number: CVPB16-0028648

This matter is on calendar for a Motion to Be Relieved as Counsel. Counsel's declarations and motion provide the requisite justification to be relieved, show proper service of all required documents and that the motion was served at the client's last known address. The Court finds that the requirements of CRC 3.1362 have been satisfied. The motion is **GRANTED**. A Proposed order was lodged with the Court

and will be executed. The Court notes the future hearing date of November 4, 2024, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF GEORGIA TREASURE

Case Number: 23PB-0032103

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, December 16, 2024, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court ORDERS the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

TRUSTS

IN RE: RALPH E. ADAMS TRUST

Case Number: 22PB-0031796

This matter is on calendar for further proceedings on a Petition for Order Determining Title to Property. An Objection has been filed by the co-trustees. At the hearing on March 11, 2024, the Court was informed that there had been a settlement offer but it was contingent on an accounting. At the most recent hearing on July 29, 2024, the Court was informed that Counsel was switching accountants, and that additional time was needed before a contested hearing could be scheduled. **An appearance is necessary on today's calendar to discuss the status of the Petition and, if appropriate, to set this matter for a contested hearing.**

IN RE: CATHY ARENTZ TRUST

Case Number: 24PB-0032578

This matter is on calendar for hearing on a Petition to Remove Co-Trustee and for Instructions. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Petition fails to identify what instructions are sought by the Petitioner. The request for instructions is **DENIED**. The request to remove the Co-Trustee is **GRANTED**. No proposed order was lodged with the Court. This matter is set for **Monday, October 14, 2024, at 2:30 p.m. in Department 44** for confirmation of lodging and execution of order. **No appearance is necessary on today's calendar.**

IN RE: LACEY TRUST

Case Number: 23PB-0031897

This matter is on calendar for further proceedings on the Petition for removal and damages. Respondent has filed a status report, indicating that additional time is needed to complete discovery. The matter is continued to **Monday, January 27, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. **No appearance is necessary on today's calendar.**

IN RE: MITSUKO I. RAGSDALE TRUST

Case Number: 24PB-0032385

This matter is on calendar for further proceedings on a Petition to invalidate trust, and for Accounting and Removal of Trustee. At the prior hearing on June 24, 2024, the Court noted multiple defects with the Petition and Notice. The defects included the fact that the Petition failed to identify all individuals entitled to notice, as required by Probate Code Section 17201. Additionally, a Notice of Hearing for a probate code section 850 petition was utilized; however, the petition does not seek recovery of any property. The matter was continued to today's date and the Petitioner ordered to file and timely serve an Amended Petition. No Amended Petition has been filed. **An appearance is necessary on today's calendar to provide the Court with a status of the Amended Petition.**